

The C.P. and Berar Moneylenders Registration Rules, 1940

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Central Provinces And Berar - Act

The C.P. and Berar Moneylenders Registration Rules, 1940

CENTRAL PROVINCES AND BERAR

India

The C.P. and Berar Moneylenders Registration Rules, 1940

Rule THE-C-P-AND-BERAR-MONEYLENDERS-REGISTRATION-RULES-1940 of 1940

Published on 1 December 1940

Commenced on 1 December 1940

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The C.P. and Berar Moneylenders Registration Rules, 1940

1.

These rules shall be called the Central Provinces and Berar Moneylenders Registration Rules, 1940.

2.

They shall come into force on the 1st December, 1940.

3.

In these rules, unless there is anything repugnant to the subject or context:-

(a)

"Act" means the Central Provinces Moneylenders Act, 1934 (XIII of 1934), or the same Act as applied to Berar, as the case may be;

(b)

"Authorised agent" means an agent appointed under a power-of-attorney.

4.

The Register of moneylenders maintained under sub-section (1) of Section 11-A of the Act shall be in Form I of the Schedule appended to these rules.

5.

An application for registration under Section 11-B of the Act shall be in Form No. II of the Schedule.

6.

(1)

The application shall be presented to the Sub-Registrar by the moneylender either in person or through his authorised agent or sent by post.

(2)

An applicant desiring to submit an application by post may remit the requisite registration fee by money-order and state the fact of having done so in his application.

7.

(1)

Where an application is presented to the Sub-Registrar by the applicant in person or through his authorised agent, the Sub-Registrar shall forthwith endorse on it the date of its presentation and if it is in order shall ask the applicant or the agent to pay, in court-fee stamps, the requisite registration fee in accordance with Section 11-C. The stamps shall be affixed to the application and shall be duly punched and cancelled by the Sub-Registrar who shall put his initials and the date across each court-fee label. If the registration fee is not paid on the date on which the application is presented, another date may be affixed for the payment of the fee.

(2)

Where an application is received by post, the Sub-Registrar shall forthwith endorse on it date of its receipt, see if the application is in order or whether the registration fee has been remitted by money-order or by insured post by the applicant. If the application contains a statement to that effect the Sub-Registrar shall, unless the money-order has been received by him in the meantime, await for a week the receipt thereof and if the requisite money is not received by money-order or by insured post within such week, the Sub-Registrar shall inform the applicant accordingly and give him a sufficiently long date to enable him to remit or tender the registration fee.

(3)

On receipt of the registration fee in respect of an application received as aforesaid by post, the Sub-Registrar shall obtain the necessary court-fee stamps. The stamps shall then be affixed to the application and shall be duly punched and cancelled by the Sub-Registrar who shall put his initials across each court-fee label.

(4)

If the fee is not paid by the applicant on or before the date fixed by the Sub-Registrar under sub-rule (1) or sub-rule (2), the application shall be rejected.

8.

If the application is not in order, the Sub-Registrar shall return it to the applicant for being properly drawn up and represented.

9.

If the application is in order and the fee prescribed by Rule 12 has been paid, the Sub-Registrar shall make necessary entries in the register of moneylenders and shall grant to the applicant a registration certificate in Form No. III of the Schedule.

10.

When an application for registration is disposed of it should be given a serial number and filed serially in a separate book maintained for the purpose.

11.

An index shall be in the Form IV of the Schedule and prepared in the language which has been declared to be the Court language of the district. One or more sheets being allotted to each letter of the alphabet. The entries in the index shall be made immediately after the grant of the registration certificate. The index shall be kept in the register of moneylenders.

12.

(1)

Any person, whose registration certificate stands cancelled under sub-section (1) of Section 5 of the Central Provinces and Berar Moneylenders (Amendment) Act, 1949 (IX of 1949), may apply for a refund of the registration fee due, if any.

(2)

Every such application shall be presented either in person or through an authorised agent or sent by post to the Sub-Registrar who had issued the registration certificate cancelled under sub-section (1) of Section 5 of the said Act.

(3)

On receipt of such application, the Sub-Registrar shall satisfy himself about the correctness of the refund claim and if the application is found to be in order, he shall arrange for refund of the amount through a refund voucher :

Provided that if the application contains a request for the adjustment of the sum found due by way of refund towards the fee for the registration of a fresh certificate applied for from him, the Sub-Registrar shall make the necessary adjustment and give the applicant necessary credit in respect of his application for fresh registration certificate.

13.

A moneylender who has been granted a registration certificate may obtain copies thereof on payment of a fee of one rupee for each copy. The copies may be obtained from the Sub-Registrar who granted the registration certificate.

14.

The register of moneylenders and the index referred to in Rules 4 and 11, respectively, shall be preserved permanently. Office copies of registration certificates granted under Rule 9 and application disposed of under Rule 10 shall be preserved for six years from the date of grant of such certificates or the disposal of such application, after which they shall be destroyed with the previous permission of the District Registrar.

Schedule

Form I

[Rule 4]

Form of Register of Moneylenders

Office of the Sub-Registrar of District.....Sub-District.....

Serial No.

Name of moneylender

Caste or religion

Residence

Date of Registration

The value of court-fee stamps affixed to the application as registration fee

(1)

(2)

(3)

(4)

(5)

(6)

If exempted from fees, the reasons for exemption

Name of the district or districts in which the moneylender carries on or intends to carry on the business of money-lending

Serial No. of application

Remarks

Signature of Sub-Registrar

(7)

(8)

(9)

(10)

(11)

Note. - (1) In the case of a money-lending firm or company, column (2) should show the names of both the firms or

company and the existing owner or owners or proprietors thereof.

(2)

Column (2) should also show the father's name and surname, if any, of the money-lender.

(3)

Column (4) should, in case of cities and towns, furnish the exact address of the moneylenders, mentioning the locality or suburb or the municipal circle or ward number, etc. and in the case of village, giving the name of the tahsil or taluq.

(4)

Column (5) should also give month and year of the British calendar.

Form II

[Rule 5]

Form of Application

To

The Sub-Registrar,

.....Sub-district

.....Tahsil

.....District.

1. The undersigned, request that I may kindly be registered as a moneylender under Section 11-B (1) of the Central Provinces Moneylenders Act, 1934 (XIII of 1934), as applied to Madhya Pradesh. *I have remitted by money-order/insured post a sum of.....by way of registration fee.

2. I reside at**..... tahsil/taluq district and carry on/intend to carry on the business of money-lending in the Revenue district/districts My caste/religion is.....

***I was last registered as a moneylender in the office of Sub-Registrar sub-district district on I have not at any time previously been registered as a moneylender.

Date19.....

.....

Signature or thumb-mark of the moneylender

* Strike out the clause which is not applicable.

** Full address should be given if the applicant resides in a city or town.

*** Stricke out this sentence if the application is presented in person or through an authorised agent.

Form III

[Rule 9]

Form of Certificate of Registration

I hereby certify that son/widow of caste (or religion)resident of Tahsil/Taluq..... District has been registered as a moneylender under Section 11-B (1) of the Central Provinces Money lenders Act, 1934 (XIII of 1934), as applied to Berar*, for the revenue district/districts of on this day of 19

Seal of the Sub-Registrar

Sub-Registrar

.....Sub-district

.....District

* Where not necessary, the words "as applied to Berar" may be struck out.

Form IV

[Rule 11]

Form of Alphabetical Index of Moneylenders

Sub-Registration Office

Name of Moneylender

Caste or religion

Place of residence

Serial No. of moneylender (as entered in Form 1)

Date of Registration of the moneylender

(1)

(2)

(3)

(4)

(5)

Note. - (1) In the case of a money lending firm or company, column (1) should show the name of both the firm, company and the existing owner or proprietor thereof.

(2)

Column (1) should also show the father's name and surname, if any, of the moneylender.

(3)

Column (3) should in the case of cities and towns, furnish the exact address of the moneylender, mentioning the locality or suburb or the municipal circle, ward number, etc. and in the case of village giving in name of the tahsil or taluq.

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